

Pradeep Gupta v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 21 February 2023 · Writ C No. 4981 of 2023 · **Petition disposed; fresh order after hearing under Supply Code.**

HEADNOTE

Recovery citation for electricity dues in a theft case was withdrawn by the Electricity Department, which undertook to pass a fresh order after hearing. The writ was disposed of with liberty to pass that order strictly in accordance with the procedure under the U.P. Electricity Supply Code, 2005. Theft and quantum were not decided.

FACTUAL SUMMARY

Pradeep Gupta petitioned the Allahabad High Court against a recovery citation dated 30 June 2022 issued by respondent no. 4 for electricity dues in a theft case. On 14 February 2023 the petition was adjourned at the request of counsel for respondent nos. 5 and 6 to obtain instructions, and was listed on 21 February 2023. Counsel for the Electricity Department then stated that the impugned recovery had been withdrawn and that a fresh order would be passed after hearing the petitioner.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::procedure

fresh order after withdrawal of theft-dues recovery

HOLDING

Where the Electricity Department withdraws a recovery citation for dues in a theft case and states that a fresh order will be passed after opportunity of hearing, the writ is disposed of with liberty to the respondents to pass that order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005. ¶ 1-2

PRINCIPLE TAGS

fresh-order-strictly-under-supply-code On the Department's statement that the theft-dues recovery citation stood withdrawn, the Court left any further order to a fresh decision taken only after hearing the petitioner and only by the procedure prescribed in the U.P. Electricity Supply Code, 2005. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER HAD COMMITTED THEFT OF ELECTRICITY AND WHAT DUES, IF ANY, ARE RECOVERABLE

Left to a fresh order after hearing, strictly under the U.P. Electricity Supply Code, 2005. ¶ 1-2